3 If a particular port or terminal of a Party is, taking into account the guidelines to be developed by the Organization, remotely located from, or lacking in, the industrial infrastructure necessary to manage and process those substances referred to in paragraph 1 of this regulation and therefore cannot accept such substances, then the Party shall inform the

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necessary to manage and process those substances referred to in paragraph 1 of this regulation and therefore cannot accept such substances, then the Party shall inform the Organization of any such port or terminal so that this information may be circulated to all Parties and Member States of the Organization for their information and any appropriate action. Each Party that has provided the Organization with such information shall also notify the Organization of its ports and terminals where reception facilities are available to manage and process such substances.

4 Each Party shall notify the Organization for circulation to the Members of the Organization of all cases where the facilities provided under this regulation are unavailable or alleged to be inadequate.
RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS,

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alleged to be inadequate.
RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 31 -

Regulation 18
Fuel oil availability and quality

Fuel oil availability

1 Each Party shall take all reasonable steps to promote the availability of fuel oils that comply with this Annex and inform the Organization of the availability of compliant fuel oils in its ports and terminals.

2.1 If a ship is found by a Party not to be in compliance with the standards for compliant fuel oils set forth in this Annex, the competent authority of the Party is entitled to require the ship to:

.1 present a record of the actions taken to attempt to achieve compliance; and

.2 provide evidence that it attempted to purchase compliant fuel oil in accordance with its voyage plan and, if it was not made available where

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.2 provide evidence that it attempted to purchase compliant fuel oil in accordance with its voyage plan and, if it was not made available where planned, that attempts were made to locate alternative sources for such fuel oil and that despite best efforts to obtain compliant fuel oil, no such fuel oil was made available for purchase.

2.2 The ship should not be required to deviate from its intended voyage or to delay unduly the voyage in order to achieve compliance.

2.3 If a ship provides the information set forth in paragraph 2.1 of this regulation, a Party shall take into account all relevant circumstances and the evidence presented to determine the appropriate action to take, including not taking control measures.

2.4 A ship shall notify its Administration and the competent authority of the relevant port of destination when it cannot purchase compliant fuel oil.

2.5 A Party shall notify the Organization when a ship has presented evidence of the non-

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of destination when it cannot purchase compliant fuel oil.

2.5 A Party shall notify the Organization when a ship has presented evidence of the non-availability of compliant fuel oil.

Fuel oil quality

3 Fuel oil for combustion purposes delivered to and used on board ships to which this Annex applies shall meet the following requirements:

.1 except as provided in paragraph 3.2 of this regulation:

.1.1 the fuel oil shall be blends of hydrocarbons derived from petroleum refining. This shall not preclude the incorporation of small amounts of additives intended to improve some aspects of performance;

.1.2 the fuel oil shall be free from inorganic acid; and

.1.3 the fuel oil shall not include any added substance or chemical waste that:
.1 jeopardizes the safety of ships or adversely affects the performance of the machinery, or

.2 is harmful to personnel, or

RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE

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performance of the machinery, or

.2 is harmful to personnel, or

.3 contributes overall to additional air pollution.

.2 fuel oil for combustion purposes derived by methods other than petroleum refining shall not:

.2.1 exceed the applicable sulphur content set forth in regulation 14 of this Annex;

.2.2 cause an engine to exceed the applicable NOx emission limit set forth in paragraphs 3, 4, 5.1.1 and 7.4 of regulation 13;

.2.3 contain inorganic acid; or

.2.4.1 jeopardize the safety of ships or adversely affect the performance of the machinery, or

.2.4.2 be harmful to personnel, or

.2.4.3 contribute overall to additional air pollution.

4 This regulation does not apply to coal in its solid form or nuclear fuels.

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of the machinery, or

.2.4.2 be harmful to personnel, or

.2.4.3 contribute overall to additional air pollution.

4 This regulation does not apply to coal in its solid form or nuclear fuels.
Paragraphs 5, 6, 7.1, 7.2, 8.1, 8.2, 9.2, 9.3, and 9.4 of this regulation do not apply to gas fuels such as liquefied natural gas, compressed natural gas or liquefied petroleum gas. The sulphur content of gas fuels delivered to a ship specifically for combustion purposes on board that ship shall be documented by the supplier.

5 For each ship subject to regulations 5 and 6 of this Annex, details of fuel oil for combustion purposes delivered to and used on board shall be recorded by means of a bunker delivery note that shall contain at least the information specified in appendix V to this Annex.

6 The bunker delivery note shall be kept on board the ship in such a place as to be readily available for inspection at all reasonable times. It shall be retained for a period of three

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6 The bunker delivery note shall be kept on board the ship in such a place as to be readily available for inspection at all reasonable times. It shall be retained for a period of three years after the fuel oil has been delivered on board.

7.1 The competent authority of a Party may inspect the bunker delivery notes on board any ship to which this Annex applies while the ship is in its port or offshore terminal, may make a copy of each delivery note, and may require the master or person in charge of the ship to certify that each copy is a true copy of such bunker delivery note. The competent authority may also verify the contents of each note through consultations with the port where the note was issued.

7.2 The inspection of the bunker delivery notes and the taking of certified copies by the competent authority under paragraph 7.1 of this regulation shall be performed as expeditiously as possible without causing the ship to be unduly delayed.

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competent authority under paragraph 7.1 of this regulation shall be performed as expeditiously as possible without causing the ship to be unduly delayed.

8.1 The bunker delivery note shall be accompanied by a representative sample of the fuel oil delivered taking into account the guidelines developed by the Organization. The sample is